

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

**Department 12
Honorable Nahal Iravani-Sani, Presiding**

Courtroom Clerk, Ryan Nguyen
191 North First Street, San Jose, CA 95113
Telephone: (408) 882-2230

DATE: 06/17/2026 TIME: 9:00 A.M. and 9:01 A.M.

9:01	CASE #	CASE TITLE	RULING
LINE 1	25CV461016	Marvellyn Nguyen vs Robert Martinez et al	Motion: Withdraw as Attorney Plaintiff's counsel Amanda Whitten moves to be Relieved as Counsel for Plaintiff Marvellyn Nguen, pursuant to Code of Civil Procedure Section 284(2). Plaintiff does not oppose the withdrawal, but denies and disputes her failure to cooperate and follow advice. Good cause appearing, and no opposition to the withdrawl, the motion is GRANTED. The Court will sign the previously submitted Form MC-053. Plaintiff must appear at the Further Case Management Conference set for September 23, 2026 at 10:00 a.m. in Department 12. Plaintiff's request to stay the proceedings is denied.

Calendar Line 1

Santa Clara County Federal Credit Union v Tafua-Teo
22CV403688

PLAINTIFF'S MOTION FOR ENTRY OF JUDGMENT PURSUANT TO CCP 664.6

The parties entered into a written settlement agreement on June 22, 2023 resolving this action. The agreement was signed by Defendant and by Plaintiff's counsel on Plaintiff's behalf and satisfies the requirements of Code of Civil Procedure section 664.6. The agreement sets forth the material settlement terms, including the amount owed, payment schedule, and default provisions.

On April 15, 2024, the Court dismissed the action without prejudice and expressly retained jurisdiction under Code of Civil Procedure section 664.6 to enforce the settlement and enter judgment upon default.

Plaintiff has established that Defendant defaulted under the settlement agreement. Defendant has not made payment since October 23, 2024. Plaintiff provided written notice of default as required by the agreement on February 17, 2026, and afforded Defendant the contractual opportunity to cure. Defendant failed to cure the default. No opposition has been filed by Defendant to the pending motion.

Pursuant to the terms of the settlement agreement and the Court's retained jurisdiction, Plaintiff is entitled to entry of judgment. The requested amount of \$2,700.00 consisting of the unpaid principal balance, is supported by the declaration and exhibits submitted in support of the motion.

Accordingly:

1. The motion is GRANTED.
2. The conditional dismissal is VACATED to the extent necessary to enforce the settlement agreement;
3. Judgment shall be entered in favor of Plaintiff and against Defendant in the amount of \$2,700.00

Plaintiff to submit the proposed order and judgment accompanied by the necessary Form EFS-020 within 7 days of the hearing.

Calendar Line 3

Case Name: *Storesund Construction, Inc. v. Bay Area Paving Co., et al.*

Case No.: 24CV433114

Factual and Procedural Background

This is an action for breach of contract and related claims brought by plaintiff Storesund Construction, Inc. (“Storesund”) against defendants Bay Area Paving Co. (“Bay Area Paving”) and Christopher Thomas Quinn (“Quinn”) (collectively, “Defendants”).

On January 1, 2025, Storesund filed a first amended complaint (“FAC”) against Defendants alleging causes of action for:

- (1) Breach of De Facto Contract;
- (2) Contractual Promissory Estoppel & Detrimental Reliance;
- (3) Breach of Contract Express and Implied;
- (4) Negligence (General Negligence); and
- (5) Negligent Misrepresentation.

On March 18, 2025, Defendants filed a demurrer and motion to strike to the FAC. The motions were scheduled for hearing on August 20, 2025. Thereafter, the court (Hon. Monahan) sustained the demurrer in its entirety with leave to amend which rendered the motion to strike as moot.

On September 18, 2025, Storesund filed the operative second amended complaint (“SAC”) against Defendants setting forth causes of action for:

- (1) Breach of Implied-In-Fact Contract;
- (2) Contractual Promissory Estoppel & Detrimental Reliance;
- (3) Breach of Contract Express and Implied;
- (4) Anticipatory Repudiation of Contract; and
- (5) Negligent Misrepresentation.

On November 20, 2025, Defendants filed the motions presently before the court, a demurrer and motion to strike to the SAC. Defendants filed a request for judicial notice in conjunction with the demurrer. Storesund filed written oppositions. Defendants filed reply papers.

A further case management conference is also scheduled for June 17, 2026.

Demurrer to the SAC

Defendants raise the following arguments in support of the demurrer to the SAC: (1) the first, second, third, and fourth causes of action do not state a valid claim and are uncertain; (2) the fifth cause of action fails to state a valid claim; and (3) the SAC fails to state a valid claim against defendant Quinn. (Code Civ. Proc., § 430.10, subds. (e), (f).)

Request for Judicial Notice

“Judicial notice is the recognition and acceptance by the court, for use by the trier of fact or by the court, of the existence of a matter of law or fact that is relevant to an issue in the action